

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 14: Cultures of Record Keeping: Creation, Preservation, and Use in the Early Modern Period, Fordham University, New York, August 16-17, 2017

The Expulsion of the Jews from the State of Milan: Same Event with Views from Different Archives

Flora Cassen, University of North Carolina, Chapel Hill

Introduction

Documents presented here come from three different sources: the archives of Milan, the archives of Simancas, and Joseph Ha-Cohen's chronicle *Emek ha-Bakha*. The document from Milan, dated from 1589, is a long defense of the Jews' right to live in Milan sent to Madrid in response to a request by Philip II of Spain who was pondering whether or not to expel the Jews. The task was given to the Spanish governor of Milan, but it is collective work put together by the Senate of Milan, based on the opinions of scholars and theologians, and a series of affidavits from officials and magistrates from across the State of Milan vouching for the Jews of their cities and towns. Nonetheless, in 1591, Philip decided to expel the Jews from Milan. Joseph ha-Cohen's successor (the "Corrector") describes, in the second document, how a Milanese Jew, Simon Vidal Sacerdoti, went to Madrid to plead in front of the King. The final group of documents record Simon's activities in Madrid in 1592, they allow us to get a fuller picture of these dramatic events for the Jews of Milan and compare what was said in Milan to what the Corrector said, to what happened in Madrid. They also provide insight into document composition, since Simon seems to have had the document from Milan with him, but he gives his own version of it. Finally, they raise questions on archival preservation and organization, since those six documents were preserved together in a file and given a sequence of numbers from 33 to 38, even though they cover a timespan of at least 15 months.

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Archivio General de Simancas, Secretarias Provinciales 1796#33

[in margin] Simon Vidal de Sacerdoti

To be able to better deliberate some claims on which Simon Vidal de Sacerdoti the Jew has given diverse memorandums to Your Majesty, we have examined again the information that the governor of Milan sent by letter to Your Majesty in the year [15]85 on his [Simon Sacerdoti's] services and those of Vidal de Sacerdoti his father. This [letter] verifies that in the time of the Wars of Piedmont [Simon Sacerdoti] discovered a treaty that Francesco Bernardino Vimercato, governor of Valencia for the French, held in Alessandria, for which he was mortally wounded. And that around the same time, he discovered many spies in this city. He went five times to Constantinople on orders of the governors of this state [of Milan] and for secret things in the service of Your Majesty. And he has always been occupied with assignments and negotiations involving secrecy and trust. That likewise in the year [15]78, he discovered a Spanish mutiny in Alessandria that was of great importance, and not less [important was] his having discovered certain Turkish spies in Milan. And that said Vidal, his father, served with the same loyalty his entire life, giving important information and helping with large quantities of weapons and money Spanish men of war during times of need. And due to his house being the first and richest of the Jews of this state [of Milan] it had become a great necessity that the governors of this state always had an account with the father and son, entertaining them and using them for many things due to the satisfaction they derived from their loyalty and diligence. And therefore, it has seemed to the ordinary magistrate that said Simon Vidal was deserving of a reward and thus to increase his lifelong salary [placa muerte?] by three *escudos* per month, on top of the seven *escudos* that he already had, so that in total he would receive ten. And the governor and Secret Council concurred on the same, increasing therefore to six *escudos* per month the salary of three [escudos] that he already had. We are appealing now to Your Majesty to use the fact that fifteen escudos are designated for him, as had his father, and that to Mathias, his brother, six escudos are designated. We plead likewise that her Majesty be served to order that he be paid what had been left behind of his father's salary with a derogation from the orders. And that he be given part of it here and financial support to pay what he

owes and return to his home. Because it has come from private notices of Your Majesty that it cannot be worth more than 20 U: [??] that they have to have from the Chamber of Milan, from the money and weapons that they have lent and [en]trusted in times of need, and from accrued interests.

[in Margin]

Mathasias

Truly the father of said Simon served much and well and has done it in important occasions for which it is fair to recognize that he deserves the [increase] of the [lifelong] salary [placa] that he holds of six escudos to nine or ten per month. Therefore in consideration of this and of all is that owed to all of them; and until they are paid; and that Mathias his brother is owed four escudos per month; and that the Duke of Terranova be instructed to see in which form these and the other Jews be paid; and that he [Simon? Mathasias?] remain as just executor of that which you Majesty has demanded regarding the expulsion of these people

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Milan

a 22 de Junio 1592

On the subject of Simon Vidal Sacerdoti the Jew

There are here new memorandums that you have given on which there is no need to make a case, only that the agreed upon be complied with. And so be it written to the governor and given the order that they be paid. And with this Simon and his brother, he [the governor] may do that which seems [right to him].

ℙ [Philip II's initial/signature]

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[in margin] Simon Vidal de Sacerdoti

Para poder mejor deliberar algunas pretensiones sobre que Simon Vidal de Sacerdote Hebreo ha dado diversos memoriales a V Mgd se ha buuelto a ver la informacion que el governador de Milan embió el año de 85 de sus servicios y de los de Vidal de Sacerdote su padre con carta para VM Por la qual consta que al tiempo de las guerras del Piamonte descubrio un tratado que Francesco Bernardino Vimercato Governador de Valencia por franceses tenia en alexandria acuya causa fue herido de muerte y que el el mismo tiempo descubrio muchas espías en aquella ciudad que ha ydo cinco vezes a Constantinopla por orden de los gobernadores de aquel estado y por cosas secretas del servicio del Magd y siempre ha sido ocupado in comissiones y negocios de secreto y confianca. Que asi mismo descubrio an año de 78 un motin de españoles en Alexandria que fue de mucha importancia y no menos el haver descubierto ciertos Turcos espías an Milan, y que el Vidal su padre sirvio con la misma fidelidad todo el tiempo de su vida dando avisos de importancia y socorriendo con gran cantidad de armas y dineros para la gente de guerra española, en tiempo de necessidad, y que a esta causa siendo su casa la primera y mas rica de los hebreos de aquel estado havia venido a mucha neccesidad que los gobernadores de aquel estado han tenido siempre cuenta con padre y hijo entreteniendolos y echando mano dellos para muchas cosas por la satisfaction que tenian desu fidelidad y diligencia y entonces parescio al magistrado ordinario que el dicho Simon Vidal era digno de premio y que assi se le podria acrescentar una plaza muerta de tres escudos al mes que tenia otros siete escudos mas, para que en todos cobrasse de diez y en lo mismo concurrieron el governador y consilio secreto y haviendosele acrescentado entonces a seis escudos al mes los tres de sueldo que tenia Supplica agora al Mgd se sirva de que a el se le señalen quinze escudos como los tuvo su padre y que a Mathias su hermano se señalen seis escudos al mes, mandando assi mismo VMd que se le pague lo que se quedo deviendo del sueldo de su padre con derogacion de ordenes y que aqui sele de alguna parte dello y alguna ayuda de costa para pagar lo que deve y boverse a su casa, pues ha venido por avisos particulares del servicio de VMd y no se puede valer de

mas de 20U: [??] que han de haver de la camara de Milan de dineros y armas que han prestado y fiado en tiempos de necessidad y de interesses corridos.

[Margin] Mathasias

verdaderamente su padre deste simon sirvio mucho y bien y lo ha hecho el en ocasiones importantes por donde es justo reconocerse lo llegandole la placa que tiene de seis escudos hasta nueve o diez al mes assi por consideracion desto como de lo mucho que se lesdeve a todos ellos y hasta que sean pagades y que a Matasias su hermano se le den hasta quatro escudos al mes y que se encargue al duque de Terranova que vea la forma que podra aver para que este y lo demas hebreos sean pagados y se quida executor con justicia lo que VMd tiene mandando cerca la salida desta gente de aquel estado. a 22 de Juno 1592

[Back summary]

Milan

a 22 de juno 1592

Sobre el particular de Simon Vidal de
Sacerdote hebreo

Van aqui otros memoriales nuevos que ha dado de que no ay que hazer caso, sino de que se cumpla lo acordado. Y assi se escriba al governador y que procure dar orden en que sean pagados. Y con este Simon y su hermano se podra hazer lo que parece. *ℙ* [Philip's initial/signature]

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On the 27th of the last month of November, we were served in council by order of Your Majesty an anonymous memorandum, which was given to Your Majesty in which what was given informed Your Majesty of many things against the Jews of this state in order that they be expelled and chased from it. And Your Majesty in her response ordered that the cardinal make the council see this paper and send a dispatch of what should be written to the Condestable because it is proper to finish with these people [Jews of Milan] and expel from here this Vidal, which has been done here as Your majesty has ordered and as Your Majesty has ben able to see through all dispatches that were sent to her regarding all the Jews as well as Vidal and his brother in particular to whom when coming to sign that which concerned him, it was said and ordered to him that he leave right after. But because in the said memorandum said some things are said that are contrary to the truth, which is so right and deals with the royal behavior of Your Majesty, it has not seemed right to the council to stop informing you of that which it is : claims that the Jews of this state have committed robbery, murders, sacrileges, having apostasied a Christian, spread heresies, entered in the monastery of Monjas, as is expounded in the said memorandum. It comes from a person, either with little information on the truth, or who wanted with that which is not [the truth], move Your Majesty to order to expel the Jews from this state, as if for this [expelling] it were necessary that part of these preceding causes be true. For whose [their/the Jews] punishment Your Majesty has her justices, and for ordering to expel them without damage to the royal and sovereign power of Your Majesty there is no need to base it on reasons such as those, especially [reasons] that aren't certain as so few in the said memorandum are. It is said, in addition to this, to have preferred the debt of the Jews. Because if it is just and confessed, for no time cannot nor should the debts be annulled, and if it is not [just and confessed], there is no necessity to allege their annulment to stop paying. On all of this, it has seemed right to the council to inform Your Majesty according to that which she was served to order regarding that which concerns the Jews. 7 December 1592.

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Milan, 1592

Response to that which Your Majesty wanted to hear concerning the document without signature that was given to you regarding the Jews of the state of Milan.

I was warned of all that was said and it is very good that the orders be executed, if they haven't yet been. *ℳ* [Philip II signature]

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A los 27 del mes passado de noviembre servio en consejo por orden de VM un memorial sin nombre de autor que se dio a vm en el qual el que ledio va informando a VM de muchos cosas contra los hebreos de aquel estado a fin de que sean expedidos y echados del. Y VM en sa respuesta manda que el cardenale haga ver este papel en consejo y embiar ordenado el despacho de lo que parescere se deve escribir al condestable pues conviene acabar con esta gente y echar de aqui al Vidal. lo qual se ha hecho assi como VM lo ha mandado y lo ha podido VM ver por los despachos que se le han embiado assi tocante a todos los Hebreos como al Vidal y su hermano en particular a quien en viniendo firmado el que le toca se lo dixer y ordenara que luego se vaya. Mas porque en el dicho memorial se dizen algunas cosas contrarias a la verdad que es tanta razon que se trate ante el real acatamjento de VM, no le ha parescido al consejo dejar de informarle de lo que lo es pues dezir que los hebreos de aquel estado han cometido robos, homicidios, sacrilegious hecho apostar un christiano, sembrado heregias, entrado en moasterio de monjas en cerridad, como en el dicho memorial se expone, es de persona o poco informada de la verdad, o que quiso, conlo que no lo es mover a VM a que mandasse echarlos deste estado como se para esto fuera necessario que de parte dellos precedieran causas como estas, para cuyo castigo tiene VM suo justicios, y para mandarlos echar sin agravio suyo la Real soberana potestad de VM que no tiene necessidad de fundarse en causas como estas especialmente, no siendo ciertos como tampoco lo es lo que en el dicho memorial se dize de mas desto de aver preferito la deude delos hebreos, pues si es justa y confessada por ningun tiempo puede mi deve prescribir, y sino lo es no tiene necessidad de alegar prescripcion para dejarse de pagar. De todo lo qual le ha parescido a consejo informar a VM como es razon despued de aver obedecido a lo que fue servido de ordenar en este que toca a los hebreos. a 7 de deziembre 1592

p.3 back summary and response:

Milan, 7 dec 1592

Respuesta alo que su su Md quiso entender sobre del papel sin firma que se avia dado contra los hebreos del estado de Milan.

Quedo advertido de todo lo que se dize y es muy bien que se ponga en execucion lo ordenado si ya no esta hecho. *ℙ* [Philip's initial/signature]

qdo en Madrid a 19 de Enero 1593

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Señor

Your Majesty was served the previous months by commanding that the Jews of the state of Milan leave with an order that firstly they be completely compensated for the credit that they hold with the Chamber of Milan for money with which they have helped and weapons in times of great need. And on that which concerns their expulsion from the state, Simon Sacerdoti says in the name of the University of said Jews that although the order of Your Majesty is very precise, they do not wish to give up on explaining to Your Majesty some reasons of Justice which are so pure and Christian and religious and of such importance that they will easily be enough to move Your Majesty from this resolution and to disabuse his sanctity and benevolence if perhaps there were in this order some error.

The first reason is that all the laws—divine and humane, civil and canonical—accept and promise cohabitation and conversation of Jews with Christians.¹ Moreover there are many doctors, scholars and theologians of high quality who conclude that it [cohabitation] is necessary and that they cannot be expelled without offending Christian charity and the Majesty of God.² Meanwhile they live quietly and without scandal as the poor Jews of the state of Milan have always lived, as is known by sworn testimony. And the reason that they cannot be expelled is that they represent the passion of Christ. And another that Christians and their own princes are obligated to promote the conversion of the Jews and bring them down to the saintly faith,³ aware that they have an origin of truth and are called, sheep of Jesus. Even for redemption without the baptismal waters, their conversion cannot have an effect without the conversation, with which it is possible to easily urge them and convert them, as it can be seen with effect every day throughout Christianity. And particularly in the said state of Milan where every day they convert and entire families have converted, as is known by sworn testimony and

¹ ex. de iude toto tit^o 1 christianis C. de paga

² d. 1. christianis ibi Doc. Oldr. Alex. Paris. Et alii relati in apostil. ad Alex. Cons. 13 lib. 7. Rola Val. in cons. 25. vol. 3. ubi in spe loquitur de iudeis estatus Mli

³ Alb. In c^o q. super exdeuot

can be felt. And Simon Vidal himself has two sisters and one brother, and male and female cousins, and nephews and nieces who have returned [to Christ] and had they been in the lands of the Turks or the Moors neither them, nor others would have converted. And so, the laws say that expelling the Jews from [Christian] states is an abuse of Christian religion which reasons are of such importance that it is not possible to believe a saintly catholic and benevolent will [animated] Your Majesty if [Your Majesty] neglected to take them [the laws] into consideration and to take example from the popes, not only one, but from all who have been from the Holy Office over here, even though they are called vicars of Christ, not only do they not expel the Jews, but rather give them comfort, allowing them to live not only in the states of the Church but in the Rome where they live in large numbers with privileges and accommodations in order that they not leave so that they can be converted little by little. And Your Majesty should not take example on the King Don Fernando who expelled the Jews from Spain, which many, including many scholars, conclude in saying that it was not a good deed for many reasons and respects, even though there was an occasion for it [the expulsion] for there were many [Jews] in Spain and this could result in a scandal, likewise in that which touches upon religion and other particularities. But those reasons cease concerning the said Jews of the state of Milan for they are few and have always lived and live quietly and without scandals, that in the hundreds of years that they have cohabitated in the said state never has a bad thing been seen or heard of them, nor a complaint, as can be seen by the sworn testimonies from the very places where they have lived and live as was transmitted to Your Majesty in the information sent by the Duke of Terranova.

The second cause to consider is the service that Your Majesty receives as a result of their [the Jews'] habitation. And even though it is nothing in consideration to the greatness of Your Majesty, it is such that other Christian princes make much of it. Therefore, they [other princes] grant them residency rights and they invite them and search them so that they come to live in their states, and even more so to those who have demonstrated promptness to serve with their farms and lives as have done in general and in particular the poor Jews of the state of Milan with their persons and farms. And especially as Simon Vidal has done during thirty-five years, and as his father during sixty-one years during which there has not been one occasion, big or small, that they have not provided help, as for all Your Majesty has received notice which confirms this in the consulta that the Royal Council of Italy sent Your Majesty in the past months.

The third is that in addition to the service to Your Majesty, there is the service to the towns of the states where they [the Jews] live, likewise for the rentals of the houses where they live as for the maintenance that is sold to them, and many other reasons that are left to be said. And for the said reasons and many others that ought

to be considered we come to the royal feet of Your Majesty with all humility, pleading that you be served by avoiding and un-signing [?] the said order to expel the Jews and that you be with the likes of scholars and theologians and with Christian charity in allowing that [the Jews] may live in the said state of Milan under the royal protection of Your Majesty as they have lived in the past on the condition that they provide no occasion for scandal.

And on that which touches on the second paragraph regarding the payment when Your Majesty was firm in her resolution to expel them, Simon Vidal said in the name of his University that in the accounts that were done to them in Milan, they find themselves much aggrieved, attentive to the fact their account has been made only five per cent with the budget that is understood in the decree of Your Majesty of the year 1560 in which for no reason or equity that can be understood given the quality of their honorable credit, and attentive to the fact that their privileges were granted by the Cardinal of Trento, then governor of Milan, confirmed by Your Majesty, and entered to the record by the Senate of Milan with derogatory clauses to the said decree of the year 1560. And of anything contrary to the said privileges, it is neither just nor honest that they suffer a grievance and damage so significant knowing that the sanctity and benevolence of Your Majesty requires that they be entirely satisfied and paid that which is fairly due to them. Pleading humbly that Your Majesty be served by ordering that on this they be given justice and offering to remain summarily with that which your excellent council will declare, or the senate of Milan, or any other tribunal that the better Your Majesty be served, given that it is a thing so just and honest that they await from the royal clemency and goodness of Your Majesty. And, Your Majesty, having ordered that the Jews leave the said state, your royal council does not wish to see this memorandum so as to not go against the will of Your Majesty, except with your special order. Therefore the said Vidal pleads in the name of the said University that to order to consider the reasons contained in this memorandum and order that they return to consult on on it and that they receive grace and mercy and justice.

[back] the University of the Jews

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Senor

Fue servido VM los messes passados mandar que los hebreos del estado de Milan saliesendel con orden que primeramente fuessen cumplidamente satisfechos del credito que tienen con la camera de Milan de dineros con que han soccorido y armas en tiempo de mucha necessidad. Y en lo que toca al hechar de los del Estado, dize Simon Vidal Sacerdote en nombre de la Universidad de los dechos hebreos, que aunque la Orden de VM sea muy precissa no quieren dexar de dar a entender a VM algunas razones de justicia lasquales son tan llanas y cristianas y religiossas y de tanta importancia que facilmente seran vastantes de mover a VM de esta resolucion y desenganar su santa y buenamente si acaso huviesse en esta orden algun engano.

La primera caussa es que todas las leyes divinas y humanas civiles y canonicas admiten y prometen la habitacion y conversacion de los hebreos con los cristianos¹. Demas que son muchos doctores, letradas y theologos de mucha calidad los quales concluyen que sea necessario y que no se pueden hechar sin ofender la charidad cristiana y la magd de Dios² mientras pero que viven quietamente y sin escandalo como han vivido siempre los pobres hebreos del decho estado como consta porfees. Y la causa porque no se pueden hechar es porque representan la passion de Christo. Y otra que los christianos y los propios principes son obligados a procurar la conversion de los hebreos y reduzir los a la santa fee,³ attento que tienen origen de verdad y son llamados, obejas de Jesu Christo. Aunque por redempcion sin la agua del santo bautismo, laqual conversion no pede haver effecto sino la conversacion, con laqual pueden con facilidad instarlos y convertirlos como cada dia se vee con effecto en la christianidad. Y particularmente en el decho estado de Milan que cada dia se convierten y se han convertido familias enteras como consta porfees qui se pressentian. Y el proprio Simon Vidal se le han vuelto dos hermanas y un hermano y primos y primas y sobrinos y sobrinas y se estuvieron en tierras de turcos o moros no se ovieran convertido ello ni otros. Y por tanto dizen las leyes que el hechar los hebreos de los estados es abuso de la religion christiana las quales razones son de tanta importancia que no pueden creer una santa catholica y buena volutad de VM

dexedet enellas en consideracion y tomar exemplo de los sumnis ponteficis no de uno, mas de todos quantos ha havido de sant P^o para aca, los quales aunque son vicarios de christo no solamente no los hechan, mas antes les dan comodidad admitiendo los con que puedan vivir no solamente en los estados de la Iglesia mas en la misma Roma donde los ay en cantidad con privilegios y comodidades porque no se vayan afin que se conviertan poco a poco. Y VM no debe tomar por exemplo del Rey don Ferdinando que hecho a los hebreos de Spana, que demas de que muchos doctores concluyen en dezir que no fue buen hecho por mucha causas y respectos hubo alguna ocasion para ello por haver mucha cantidad dellos en Spana y que podia suceder algun escandalo, ansi en lo que toca a la religion como en otros partikulares, las quales causas cessan en los dechos hebreos del decho estado de Milan por ser pocos y que han vivido y viven quietamente y sin escandalos que en centenarios de anos que han conviven en el decho estado xamas se ha visto ni entendido cosa mala dellos, ni querella como consta por las fees de los propios lugares donde han vivido y viven y como ansi miss^o a VM por la informacion embiada por el duque de Terranova.

La segunda causa de consideracion es el servicio que resulta a VM de su habitacion, que aunque sea no nada en consideracion de la grandezza de VM es tal que otros principes cristianos hazen caudal dello, y en su consideracion les conceden la habitacion y los convidan y buscan para que vayan a vivir a sus estados. Y mucho mas a los que han demostrado prontitud de servir con sus haziendas y vidas como lo han demostrado en general y particular los pobres hebreos del decho estado de Milan con sus personas y haziendas y como en particular lo ha hecho el decho Simon Vidal en espicio de trenta y cinco anos y su padre en espacio de sessenta y un anos que no se ha havido ocasion chica ni grande a que no haian acudido como de todo VM tiene noticia le consta por la consulta que el Real consejo de Italia ha embiado a VM los meses passados

La tercera es que demas del servicio que resulta a VM ay el servicio de los pueblos del estado en los quales havitan, ansi por los alquileres de las casas que viven como por los mantenimientos que a ellos se venden, y otras muchas causas que se dexan de dezir. Y por la dechas razones y otras muchas que son de consideracion acuden a los reales pies de VM con toda humildad supplicando le sea servido ebitar y refirmar la decha orden de hechar los y sea con parecer de doctores y theologos y con la charidad cristana permitiendo que pueden vivir en decho estado de Milan devajo de la real protection de VM como por lo pasado han vivido mientras que no dieren ocasion alguna de escandalo.

Y en lo que toca al segundo capitulo del pagamento quando VM estuvie se firme en la resolucion de hecharlos, dize Simon Vidal en nobmre de su universidad que

en las quantas que les han hecho en Milan se hallan muy agraviados attento que se les ha hecho su quenta solo cinco por ciento com presupuesto que sean comprehendidos en el decreto de VM del ano de 1560 en el qual por ninguna razon ni equidad pueden ser comprehendidos en el estando la calidad de su credito honorosso y attento sus privilegios concedidos por el cardinal de Trento entonzes governador de Milan confirmados por VM interinados por el senado de Milan con clausulas derogativas al decho decreto del ano de 1560. Y de qualquier otro contrario a los dechos privilegios - y no siendo justo ni onesto que padezcan un agravio y dano tan notable saviendo que la sancta y buenamento de VM es que sean enteramente satisfechos y pagados delo que justamente se les deve. Supplican humilmente a VM sea servido mandar que sobre esto se les haga justicia offreciendose de estar sumariamente alo que se declarare su excelso consejo - o el senado de Milan o qualquier otro tribunal que mejor VM mas fuere servido que como cosa tan justa y onesta esperan de la real clemencia y bondad de VM. Y haviendo VM mandado que salgan de aquel estado su real consejo no quiere veer este memorial por no yr contra la real mente de VM sino es con su special orden, Por lo qual el decho Vidal Supplica en nombre de la decha universidad se sirva de mandar considerar las causas contenidas en este memorial y mandar que se buelva a consultar sobre ello en que recibiran gracia y merced y justicia

[back]

La Universidad de los hebreos

¹ ex de iude toto

tit. 1. xpianis C depaga

² d. 1. xpianis et ibi Doc. Oldr.

Alex. Paris. et alii relati in apostil.

ad Alex cons. 13 lib. 7. Rol.

a val. in cons. 25. vol. 3.

ubi in spe loqtur de iudeis esta

tis Mli

³ Alb. in co. que super exdeuot

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Archivio General de Simancas, Secretarias Provinciales 1796#36, 37, and 38

Not dated but filed with 1796-33, 34 and 35

(1796#36)

Simon Vidal Sacerdote hebreo

Señor

Simon Vidal Sacerdote says that a Jew has offered to give the true secret to “sweeten” the salty water of the sea at little cost and with ease and that it will last months and years very well. And because the said Jew is not to come to this court: he pleads Your Majesty, because it is a thing of such great importance for your royal fleets, to order the governor that he understand this affair so that it be given a reward that is fair. After having become aware of the said secret, which in addition to being great will provide a real service to You Majesty, the said Vidal will receive a reward for dealing with the said secret and those who [brought it] to light.

[in margin]

The secret to make sea water “sweet”

(1796#37)

Simon Vidal Hebreo

Señor

Simon Vidal has been in this court being much needed. It has been already thirteen months that he is in this [court] without receiving a single *maravedi* of support for the costs [of his stay]. And he finds himself in extreme necessity: he pleads Your Majesty to grace him with some support for the costs to sustain him until he is dispatched so that he be able to return to his home where he will receive reward and grace from Your Majesty.

[in margin] demand of support for the costs

(1796#38)

Simon Vidal Sacerdote hebreo

Señor

It has been fifteen months since Simon Vidal Sacerdote the Jew has left his home to come to the feet of Your Majesty to give an account to him on certain things that happen in his royal service as he has given part to Don Cristobal de Mora.

[Portuguese politician and diplomat who served at the court of Philip II]

He has given a memorial and account of his services of thirty-five years and of his father of sixty-one years in things of such importance related to the governor of Milan. And your Majesty has transmitted this to the Council of Italy which has consulted. And this consulta is in the hands of the Count of Chinchon [one of the great noble families of Spain; Count Diego Fernandez de Cabrera y Bobadilla] as they say. Having been here in great need not knowing who to turn to but to the royal feet of Your Majesty: To whom he humbly pleads that he [the king] be served by ordering to see his [Simon's] consulta with giving him the reward that so many and so great services during so many years deserve. And that he can be promised the greatness of Your Majesty so that he can return to his home for he will serve You Majesty more from there than from here and that he will receive good and reward.

[in margin] that his consulta be resolved

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The Expulsion of the Jews from the State of Milan: Same Event with Views from Different Archives

Flora Cassen, University of North Carolina, Chapel Hill

Archivo General de Simancas, Secretarias Provinciales 1796#36, 37, and 38

Not dated but filed with 1796-33, 34 and 35

(1796#36)

Simon Vidal Sacerdote hebreo

Señor

Dize Simon Vidal Sacerdote hebreo, que un hebreo se ofrece A dar el verdadero secreto para endulcar el agua salada de la la mar con poco gasto y con facilidad y que durara messes y anos muy buena. Y por que el decho hebreo no es para venir a esta corte : Supplica a Vm pues es cosa de tanta importancia para sus reales armadas, mande al governador de Milan entienda en este negocio para que se le haga la merced que fuere justa, despues de haverse enterado del decho secreto que demas de ser grandissimo provecho a real servicio de VM el decho Vidal recibira merced en que se ocupe en el decho secreto y los a que a luz.

[in margin] El secreto par hazer dulce el agua de la mar

(1796#37)

Simon Vidal hebreo

Señor

Simon Vidal se halla en esta corte muy necessitado son ya treze meses que esta en ella sin haver recebido un solo maravedi de ayuda de costa. Y hallandose en extrema necesidad : Supplica a VM le favoreza con alguna ayuda de costa para sustentarse hasta que sea despachado para poder volber a su casa que en ello reciba Mrd Y gracia de VM.

[in margin] pide ayuda de costa

(1796#38)

Simon Vidal Sacerdote hebreo

Señor

Son quinze meses que Simon Vidal sacerdote hebreo salio de su casa para venir a los pies de VM a dar le quenta de algunas cosas que passan tocantes a su real servicio como dello ha dado parte a don Christobal de Mora.

Ha dado memorial y cuenta de sus servicios de trenta y cinco años y delos de Vidal su padre de sessenta y un años en cosas de tanta importancia con relacion des governador de Milan y VM lha remitido al Consejo de Italia el qual lo ha consultado y esta la consulta en manos des Conde de Chinchon segun dizen y hallandose aca con mucha necessidad no saviendo a quien acudir sino es a los reales pies de VM : A quien humilmente supplica sea servido mandar se vea su consulta con hazerle la mrced que tantos y tan grandes servicios y de tantos años merezen y que se pueden prometer de la grandeza de VM para que pueda volver a su casa que mas servira a VM alla que aca en que reciba bien y mrd.

[in margin] que se resuelva su consulta

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Archivio di Stato di Milano, Fondo Culto 2159, Fasc. 1

Instructions and statements in favor of the Jews of the State of Milan to inform her Majesty of the execution of the request in her letter of April 25th 1589. To the illustrious Governor of the State of Milan.

Although the article is very clear that the Jews who are living well, not only cannot be prohibited to live in Christian lands, but instead they should be allowed to do so and as first even clearer proof, we add the decision in the law *Christianis C de paganis*. And this law was enacted by the emperors Honorio and Theodosio, because even if they were Christians they had knowledge of the light of truth and true Christian orthodox faith, by this law it is prohibited to Christians to abuse the Christian Religion including to torment Jews under penalty of receiving the same abuse but doubled, and the same sentence would be given to Judges and governors of the provinces that would not give the said penalty to those abusing Jews. What is read here is called to abuse Christian religion by tormenting the Jews. There are many other laws and canons about this, that are omitted to be concise. But we cannot leave out the saint canons made by the Saint Fathers and Highest Popes, which concern most of these specific cases, where one can read many dispositions concerning the Jews, as you can see in all the titles *ex. de Iude*, which would be superfluous if their [the Jews'] right to live here wasn't permitted by the Saint Fathers and the law doesn't allow any superfluousness, as is mentioned in the *prima constitutione civitatis*, from which it is understood that the [Jews'] habitation is permitted by reason. This is demonstrated even more clearly by the following facts, that the Jews not only have always and continually been allowed to live in the jurisdictions of secular princes throughout Christianity, but also in the lands of the Holy Church, in the same city where the Popes live and where they have temporal jurisdiction, as is more clearly demonstrated in the opinion of the illustrious and revered Cardinal Vitellio Camerario Apostolico of January 25th 1568 that states that the Holy, of happy memory, Pope Pio Quinto, from the day he was elected Pope to the day of this opinion, has always and continually allowed and tolerated that Jews stay, live and lend in the Provinces, Cities and Castles, and nearby places directly or indirectly subjected to the Holy Roman Church, and that the said Illustrious and Revered Camerario indistinctly gives and concedes a

license to all the Jews who want to stay, live, and lend through his letter patent signed earlier. Likewise, in a similar opinion of the Illustrious and revered Cardinal Caetano Camerario Apostolico of February 18th 1588 in which it appears that in the lands of the Holy Church, the license to live and work is given to Jews with the approval of judges, and this could be given to the State of Milan if this were King Philip's will sign. 2a. And so, on the basis of these two foundations, namely the dispositions of the law and its observance, it is clearly understood that Jews should not be prohibited from living here.

A third foundation is added, which is taken from the most common opinions of Doctors who write on this matter, that the Jews should not be expelled, as long as they behave in a good manner as it is following *Oldrado, Alessandro, Iasone, Parisio and others linked in the letter to Alex. consi. 13 col. 4 in the 7th vol. and Marsil consi. 101 num. 56 attesta Antonio Corsetti in the tracta. de Iude parte pri. cap. 7 Martin Lauden. in tracta. de Princip quest.* and in the own terms of the Jews living in the State of Milan; and in *consil. Rolan. Da Valle 25 in 3 vol.* And that the Jews behave modestly and without scandal, without being accused of crimes or a scandalous thing is proven by the opinions that follow.

One by the Illustrious Don Rafael Mandrich with his seal, [stating] that the Jews living in Cremona behave modestly, deal with Christians with respect and reverence, that they have helped the soldiers with convenience and courtesy, and during the transit of Princes [through Milan] they would give them utensils and things as presents. Sign. A.

One by Sig. Bernardino Lodi, actuary of the Subconservatore of the Jews of Cremona, written in good [legal?] faith, [stating] that the Jews living there act with modesty against their debtors, and sought to delay the executions of [debts?] conceded to them. Sign. B.

One by Sig. Francesco Corbelino, actuary Criminal of Cremona, written in good faith, [stating] that the Jews living there live quietly and do not contravene to the orders and decrees of superiors. Sign. C.

One by the Magistrate Signori Vicario, Judge and accountant of Pavia, [stating] that the Jews living there live quietly, accommodating anyone dealing with them. Sign. D.

One by Christoforo da Corte, actuary of the Subconservatore of the Jews of Pavia, same as the previous one. Sign. E.

One by the Mag. Signori Decurione of Lode, written in good faith, [stating] that the Jews living there are ready to lend for free and give as presents utensils and stuff to the Princes and Lords visiting Lode, and that they are generous [loving?] in their businesses and are behaving well. Sign. F.

One by Francesco Bondena, actuary of the Sub-curator of the Jews of Lode, written in good faith, confirming the previous letter. Sign. G.

One by Sig. Francesco Prevedono, actuary Criminal of Lode, written in good faith, [stating] that the Jews living there have never been accused of something scandalous in 25 years here. Sign. H.

One by the Rever. Sig. Episcopal Vicar of Alessandria, [stating] that the Jews living in that city live without scandal, behaving modestly with everyone. Sign. I
One by the Magistrate Sig. Subconservatore of Alessandria, [stating] that the Jews live quietly, and have been courteous with Christians by giving delays to pay, and remitting interests and expenses, and on occasion gifting utensils and stuff to Princes passing through. Sign. K.

One by the Mag. Sig. Lieutenant of the Mag. Sig. Sindicatore of Alessandria, [stating] that the Jews living there have not been accused of any excesses for many years and are behaving modestly. Sign. L.

One by the Sig. Civil and Criminal Actuaries of Casalmaggiore, written in good faith, [stating] that the Jews living there have lent money for free, and proceed with modesty against debtors, and postpone the executions obtained. Sign. M.

One of the Criminal Notary of Casalmaggiore, written in good faith, [stating] that the Jews living there do not disobey an order or decree from their superiors. Sign. N.

From this you can understand that there is on the above a common opinion that is confirmed by research and that is based on the above laws and canons. Fourth [foundation], the conclusion [that Jews shouldn't be expelled] is strengthened for many reasons, which are persuasive, to which you can add some particular ones from the infinity one could add. The first is that some Jews living here come to know the truth of the Christian faith and so they receive the holy baptism, which pleases our Heavenly Pastor that his sheep are well looked after, and so we have to care for the conversion of the Jew, *Abb in cap. quod super ex. de vot.*, and this cannot be done otherwise than through cohabitation, which, for this reason, we must concede. Second is that the Jews inscribed to memory the passion of our Lord and Saviour, [come rei de quella], and in their books the truth of our

Christian Faith is prefigured *Fel. et Soc. in cap. consuluit ex de Iude*. Third, also that the Jews are lambs of Christ by creation, not by redemption. If with the holy baptism they do not attain salvation, they are invited to the Evangelical table both the good and the evil, even though the ones who do not have the nuptial dress are still banished. So, since they are invited by the holy creator and live by the figure of our faith, we ought not to prohibit them from living here.

Fourth, that we are obliged to give alms also to poor Jews *cap. quescamus 42 distinct.*, and that this cannot be considered natural discourse if not with the residency of the Jews in our cities, since otherwise we cannot be informed of their poverty and needs.

Fifth, this stance is strengthened by considering the Jews' usefulness to the people of His Catholic Majesty, since they rent the houses to the Jews that would otherwise remain empty, and they rent for more expensively to the Jews: they also sell them their fruits, grain, live[stock?], and other things needed to dress and furniture for the house. Her Catholic Majesty should not make little of this, rather she should favor and help her subjects, and give them all the conveniences so they can remain [solvable?] and as rich as possible, given that these subjects [the Jews] when they get more from their revenue and when they get richer, they are even more able and suitable to pay the taxes owed to her Majesty.

Sixth, we should not omit from this the [Jews'] manifold utility to her M.R.C. which, in addition to the other [reasons], is convenient to consider.

First that her cities are more populous and are richer with the Jews living there, *dd. in l. l. ff. sol. matr.* Second, that her taxes are higher with the Jews, because of their use, namely of a machine, for the wine, meat and similar things needed to human life, and that some merchants pay every year a large sum of money in taxes.

And that the shops of the Jews result in great utility to His Majesty in taxes, as shown in the written opinions.

One of the assistants to the taxes in Milan [says] that the Jews have given and give the greatest utility in taxes. Sign. O.

One from a public notary written in good faith by a tax collector of Cremona that [says] as the previous one. Sign. P.

One from the tax collector of Pavia that [says] as the previous one. Sign. Q.

One from a public notary written in good faith by the tax collectors of Lode saying the same. Sign. R.

One from the tax collector of Alessandria of the same content. Sign. S.

One from a public notary written in good faith by the tax collector of Casal Maggiore saying the same as the previous ones. Sign. T.

One from a public notary written in good faith by the tax collector of Pizighitone saying the same thing as the previous ones. Sign U.

Second, that her Catholic Majesty has, when needed, used the help of the Jews for 30 years by now, not only did they pay her for the license to lend at interest and to not have a sign differentiating them from Christians, they also lent her Majesty a lot of money, as will be said below, of which they remain creditors, and this money was given away in times of urgent necessity, when there were no Christians that could have served such [a large] sum; and to this we add that every time Christians have served in similar circumstances, they have wanted to recoup extremely high interests, and they wanted an very certain and very strong guarantee, as is well known. But the Jews have served without problems, for her [Majesty] greatest convenience with the interests they asked, and against the Jews, other than not having interest, they have lent so much money with inconvenience, damage and ruin to themselves, because some of them, for this reason, have remained very poor and miserable, so much that they have nothing to live from, except for what they gain with their industriousness. Third, that with the Jews' residency her MRC rewards two well-deserving [men] making them conservators, to whom the taxes of the Jews for residency and usury are paid, and if her MRC did not reward these well-deserving [men] thus, she would have to reward them with what belongs to her MRC, so for this obvious usefulness to MRC together with all the others it appears clearly that the Jews should not be prohibited from living in this state. Nor is there danger of carnal relationships between Jews and Christians, because to this the answer is that this suspicion lasted until the time that the *legge Christianis* was issued, and many cannons like the above, and many lawmakers and conditori di canoni made many such laws and cannons. And if you want to search in the criminal trials of this state, you will not find one concerning such an accusation against any Jew, because they are so persecuted (if not of other [things], they are very afraid of being persecuted or sentenced) that they abstain entirely, and any suspicion ceases. But even though the law has to accommodate more frequent cases, one should not take a crime that an individual could commit, and take advantage from that case to create a general, or universal law against it, instead the suspicion always has to stand against particular individuals, and the presumption ought to be that the majority is behaving well, and by reason one should wait for evidence to change, which is good *Ias. in l.sitis ad quem num. 28 de acquir. haered., Alciat. in tracta. de praesumpt. pri. reg. praesump. 30, Soc. Iun, consi. 37. num. 22. in pri. vol.*

Even if not having a place limits this conclusion (when well pursued in our case, but which cannot be arranged) when the cause that is good is stronger, as the same *Ias.* said in the above, you should not doubt that the presumption of the many is stronger than the suspicion, and the presumption of good than that of evil, and especially if there is falsity in it, they [who utter false suspicions] should be severely punished: likewise it is universally permitted to carry a sword, but is not envisaged that someone could commit a crime with it, or a bad operation, for against such criminals one goes to trial and they should be given the just punishment.

And to obey that which her Majesty commands, the number of Jews living in the State of Milan: it is said that in total they are 889. 456 in Cremona, 123 in Pavia, 130 in Lode, 103 in Alessandria, 71 in Casal Maggiore, 6 in Caravaggio.

For these reasons, we conclude that we cannot prohibit them from living in Christian lands.

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Archivio di Stato di Milano, Fondo Culto 2159, Fasc. 1; Shlomo Simonsohn, *The Jews in the Duchy of Milan* (Jerusalem: Israel Academy of Sciences and Humanities, 1982) vol. 3, 1813-1819.

Instruttione et Allegatione per gli Hebrei del Stato di Milano per informare sua Maestà in essecutione d'una sua lettera de 25 Aprile 1589. All'Illustrissimo S. Governatore del Stato di Milano.

Anchora che l'articuolo sii chiarissimo, che gl'Hebrei, quali vivono bene, non si possano non solamente prohibire habitare nelle terre de Christiani, ma anzi che se gli debba permettere per molto più Chiara dimostrazione s'adduce prima la dicisione de la legge Christianis C de paganis. Et qual fu fatta da gl'imperatori Honorio et Teodosio che erano pur Christiani, et havevano la cognitione del lume della vera et ortodoxa fede Christiana, col voler turbare gl'Hebrei, sotto pena del duplo a chi turbasse, et la medesima pena è costituita a i Rettori delle provincie et a li Giudici, che non daranno le sudette pene a tali turbanti gli Hebrei. A tal che ivi si legge, che si chiama abusare la religione Christiana nel turbare gl'Hebrei. Molte altre legge et canoni sono a questo proposito quali per brevità si omettono. Non traslaciando però, che nelli sacri canoni fatti da Santi Padri et Sommi Pontefici, a quali tocca maggior parte de tali particolari, si leggono molte dispositioni fatte sopra gl'Hebrei, come si vede in tutto el titolo ex. de Iude. qual sarebbero superflue se l'habitatione non fusse permessa da gl'istessi Santi Padri, et la legge non admette superfluità alcuna, item in quibus in prima constitutione Civitatis dal che si comprende, che la habitatione e permessa di ragione. Et questo più chiaro si dimostra da l'effetto seguito, et sempre continuato, perche si trova per cosa notoria, che gli Hebrei non solamente sono sempre et continuamente statti permessi habitare nelle giurisdittioni de Prencipi secolari per tutta la Christianità, ma ancora in quella della Santa Chiesa, anzi nel'istessa Città dove habitano i Sommi Pontefici, et dove hanno giurisdittione temporale, el che più chiaro si dimostra per la fede fatta sotto 25 Genaro 1568 dall'Illustriss. Et Reverendiss. Cardinale Vitellio Camerario Apostolico, dove si legge, che el Santissimo de felice memoria Pio Papa Quinto dal giorno che fu eletto Papa fin'al giorno d'essa fede, sempre et continuamente ha permesso et tolerato Hebrei stare, habitare, et prestare nelle Provincie, Città, Castelli, et luoghi mediatamente, overo immediatamente alla

Santa Romana Chiesa soggetti, et che esso Illustriss. et Reverendiss. Camerario ad ogni Hebreo che vogli stare, habitare, et prestare indistintamente suole dare et concedere licenza per sue patente, signata primo. Item per una simil fede dell'Illustriss. et Reverendiss. Cardinal Caetano Camerario Apostolico fatta a di 18 Febraro 1588 per quale appare che nelle terre della Santa Chiesa si da licenza ad hebrei di habitare et fenerare con deputatione de giudici, et che si darebbe nel Stato de Milano, se a questo vi concoresse la volontà del potentissimo Re Filippo sign 2a. Et cosi per questi doi fondamenti cioe della dispositione della legge et dell'osservanza, si conosce chiaramente, che non se deve prohibire l'habitatione a gli Hebrei.

S'aggiunge il terzo fondamento qual si pigli dalla comunissima opinione de Dottori che in questa materia scrivono, che gl'Hebrei non si debbono scacciare, pur che si portino modestamente, como doppo Oldrado, Alessandro, Iasone, Parisio, et altri allegati nell'apostilla ad Alex. consi. 13 col. 4 in 7 vol. et Marsil. consi. 101 num. 56 attesta Antonio Corset. in tract. de potesta req. q. 81 et Marquardo de Susan. in tracta. de Iude. parte pri. cap. 7 Martin Lauden. in tracta. de Princip. quest. 9 et nel proprio termine delli Hebrei habitanti nel stato de Milano; vi è il consil. de Rolan. da Valle 25 in 3 vol. Et che gl'Hebrei si portino modestamente, et senza scandalo, et non sijno processati de delitti, o cosa scandalosa, si prova per l'infrascritte fede. Una del molt'Illust. Sig. Don Rafael Mandrich col suo sigillo, che gl'Hebrei habitanti in Cremona si portano modestamente, trattando con Christiani con rispetto et riverenza, et c'hanno soccorso con molta commodità et cortesia a Soldati, et in transito de Principi hanno servito de utensila et robbe per regular' essi Principi. Sign. A.

Une del sig. Bernardino Lodi attuario del Sig. Subconservatore d'Hebrei di Cremona con fede de legalità, che gl'Hebrei ivi habitanti procedono con modestia contra suoi debitori, et ricercati soprasedono anchora dall'essecutioni a loro concesse. Sign. B.

Una del Sig. Francesco Corbelino attuario Criminale di Cremona con fede de legalità, che gl'hebrei ivi habitanti vivono quietamente, et non contravengono a gl'ordini et cride de superiori. Sign. C.

Una delli Mag. Signori Vicario, Giudice, et Fiscale di Pavia, che gl'hebrei ivi habitanti vivono quietamente, accomodando chi trafica con loro. Sign. D.

Una del Sig. Christoforo da Corte attuario del Sig. Subconservatore d'Hebrei di Pavia, conforme all'antecedente. Sign. E.

Una delli Mag. Signori Decurioni di Lode con fede de legalità, che gl'hebrei ivi habitanti sono pronti a prestar gratis per regalare gl'Illustriss. Principi et altri

Signori che vengono a Lode utensilia et robbe, et sono amorevoli nelle suoi negotij et si deportano bene. Sign. F.

Una del Sig. Francesco Bondena attuario del Sig. subconservatore d'Hebrei di Lode con fede de legalità, conforme all'antecedente. Sign. G.

Una del Sig. Francesco Prevedono attuario Criminale di Lode con fede di legalità, che gl'Hebrei ivi abitanti non sono stati querelati de cosa scandalosa da 25 anni in qui. Sign. H.

Una del Rever. Sig. Vicario Episcopale d'Alessandria, che gl'Hebrei abitanti in quella città vivono senza scandalo, procedendo con modestia con tutti. Sign. I.

Una delli Mag. Signori Subconservatori d'Alessandria, che gl'Hebrei in quella Città vivono quietamente, et hanno usato cortesia a Christiani in dargli dilationi a pagare, et rimettergli interessi et spese, et all'occasione hanno servito di utensilia et robbe in passaggio de Principi. Sign. K.

Una del Mag. Sig. Luocotenente del Mag. Sig. Sindicatore d'Alessandria, che gl'hebrei ivi abitanti non sono d molt'anni in qua querelati d'eccesi, et si portano modestamente. Sig. L.

Una delli Signori Attuarij del Civile et Criminale di Casalmaggiore con fede de legalità, che gl'Hebrei ivi abitanti hanno prestato danari gratiosamente, et procedono con modestia contra debitori, et soprasedono dall'essecutione ottenute. Sign. M.

Una del Notaro Criminale di Casal Maggiore con fede de legalità, che gl'hebrei ivi abitanti non contravengono a cride o ordini de superiori. Sign. N

Dal che si comprende, che ha luocho la sudetta commune opinione poi che vi concorre la qualità ricercata, et è fondata nelle sudette leggi et canoni.

Quarto, si fortifica questa conclusione per molte ragioni, che persuadono questo, delle quale se ne adducono alcune particolari fra infinite che si possono addurre. Prima che alcuni Hebrei per tal habitatione vengono a cognoscere la verità della fede Christiana, et cosi pigliano el santo battesimo del che più se allegra l'Evangelico Pastore che delle sue pecore ben custodite, et cosi stando che noi dobbiamo curare la conversione d'essi Hebrei, Abb. in cap. quod super ex. de vot., et non potendosi questo far altramente e che per la cohabitatione quella si deve per questa ragione concedere. Secunda che gl'Hebrei ne riducono a memoria la passione del nostro Signore et Redentore, come rei de quella, et nelli suoi libri si prefigura la verità della nostra fede Christiana Fel. et Soc. in cap. consuluit ex. de Iude. Terza, che anchora gl'Hebrei sono pecore di Christo per creatione, non per

redentione, se con il santo Battesimo non si procacciano la salute poi che sono invitati alla mensa Evangelica i buoni et i cattivi, benche poi restino scacciati quelli che non hanno la veste nuptiale, et cosi se dal sommo fattore sono invitati, et vivono nella figura della nostra fede, non se gli deve di ragione prohibire l'habitatione.

Quarta, che siamo obligati a far elemosina ancora alli Hebrei poveri cap. quiescamus 42 distinct. et che non si puo considerare per discorso naturale, se non con l'habitatione d'essi Hebrei nelle nostre Città, perche altramente non potremmo esser informati della loro povertà et bisogno.

Quinto, se accresce questa dispositione considerando la utilità, che ne segue a li populi subditi di sua Maestà Catholica, quali per la habitatione de Hebrei affitano le case, che forse restarebbono vacue, et le affitano più care a gl'Hebrei : ancora gli vendono i suoi frutti, grani, vivi, et altre cose pertinente al vestire et fornitura di casa. Ne de questo deve sua M. R. Cath. farne poco conto, convenendoseli favorire et aggiutare a suoi sudditi, et dargli tutte le commodità perche restino sollevati et ricchi in quanto si pò, atteso che detti sudditi quanto più cavano delle sue intrate, et quanto sono più ricchi sono ancora più habili et idonei a pagare i censi devuti a sua M.R.C.

Sesto, non se ha da ommetere a questo proposito le molte utilità de sua M.R.C. delle quale accesoriamente a le altre ne pò havre conveniente consideratione. Prima che le sue Città sono più popolose et ricche con l'habitatione d'essi Hebrei, dd. in. l. l. ff. sol. matr. Secunda, che i suoi Datij s'affatano più poi che gli Hebrei, et per cose de suo uso, cioe macina, dacio de vino, carne, et altre simil cose necessarie al vitto humano, et per alcune de mercantie pagano ogn'anno grossa somma de danari de Dacij.

Et che dalli negotij d'Hebrei ne risulti grand'utilità a sua Maestà per i dacij, si prova per l'infrascritte fede.

Una delli assistenti al dacio de Milano, che gli hebrei hanno dato et danno grandissimo utile alli dacij. Sign. O.

Una publica per mano di Notaro con fede de legalità dal daciario de Cremona delle precedente sostanza. Sign. P.

Una del daciario de Pavia della precedente sostanza. Sign. Q.

Una publica per mano di Notaro con fede de legalità delli Daciari di Lode della precedente sostanza. Sign. R.

Una del daciario d'Alessandria dell'antecedente sostanza. Sign. S.

Una publica per mano di Notaro con fede legalità del daciario de Casal Maggiore dell'antecedente sostanza. Sign. T.

Una publica per mano di Notaro con fede de legalità del daciario de Pizighitone dell'antecedente sostanza. Sign. U.

Secunda che sua M.R. Cath. a suoi bisogni si è servita delle facultà d'essi Hebrei come ha fatto da trenta anni in qua, che oltra quello hanno pagato gl'Hebrei per la licanza di fenerare, et di non portar segno differente da Christiani, hanno ancora servito a sua M. Reg. Cath. de molti danari, come se dirà de sotto, de quali ancora ne restano creditori, et tali danari sono stati tolti a tempi de urgente necessità, et quando non si trovavano Christiani che de tali danari servissero, et a questo proposito s'aggiunge che se alcuna volta Christiani in simil casi hanno servito, ne hanno voluto ricavare grossissimo interesse, et hanno voluto certissime et fortissime cautione, come s'adduce per cosa notoria. Ma gl'Hebrei hanno servito senza incomodarsi, anzi con suo grandissimo comodo per l'interesse che cavavano, et per contro gl'Hebrei, oltra che no hanno havuto interesse hanno ancora servito de tali danari con grandissimo suo incomodo et danno, anzi ruina, perche alcuni de loro per tal causa sono restati poverissimi et miserabili, a tal che non hanno di che vivere, se con la sua industria non se lo procacciano. Terza, che con l'habitatione de gli Hebrei sua M.R. Cath. gratifica duoi benemeriti facendoli conservatori, a quali si paga il censo da gl'Hebrei quando habitano et prestano a usura, et se sua M.R.C. non gratificasse tali benemeriti a questo modo, sarebbe necessario gratificarli de quello che è de sua M.R.C. et cosi per l'evidente utilità de sua M.R. Cath. insieme con tutte l'altre chiarissimamente appare, che l'habitatione non si deve prohibire a gl'Hebrei in questo stato. Ne a questo obsta che vi sij pericolo della commistione carnale de gl'Hebrei con li Christiani, perche se risponde, che tal suspitione era fin al tempo che fu fatta quella legge Christianis, et tanti canoni come sopra, et niente di meno non sono mancati i legislatori et conditori di canoni de far tal legge et canoni. Di più se si vorrà cercare nei processi criminali de questo stato non se ne troverà uno solo sopra tale imputatione contra alcuni Hebrei, perche gl'Hebrei infinitamente perseguitati (se non per altro, almeno per paura di gran persecutione et pena), s'astengono talmente, che cessa ogni suspitione. Ma de più poi che la legge si deve accomodare a gli casi più frequenti, non si deve talmente considerare un delitto che possa commettere un particolare, che da quello se piglia l'occasione de far una legge generale anzi universale contraria, anzi stando in ogni caso la suspitione contra alcuni particolari, et la presumptione ch'el maggior numero si debba portar bene, ancora che de raggione se debba più attendere la causa che obsta, che quella giova, Ias. in I.siiis ad quem num. 28 de aquir. Haered., Alciat. in tracta. de praesumpt. pri. reg. praesumpt. 30,

Soc. Iun. consi. 37. num. 22. in pri. vol. Nientedimeno si limita detta conclusione non haver luocho (quando bene procedesse nel nostro caso, al quale però non si puo accomodare) quando la causa che giova è più potente, come l'istesso Ias. nel sudetto luocho dice, ne vi è da dubitare che più potente è la presumptione de molti che la suspitione de pochi, et la ppresumptione del bene che la suspitione de male, massimamente poi che chi in cio falasse si potrebbe severamente castigare : come ancora si permette il portar di spada universalmente, ne si ha risguardo che alcuno possi con quella far alcun delitto, o mal operatione, poi che contra tali delinquenti si procede, et se gli da el debito castigo.

Et per obedire a quanto sua Maesta commanda, quanti Hebrei habitano in questo stato di Milano : Si dice, che in tutto sono al num. de 889. cioè a Cremona 456, a Pavia 123, a Lode 130, a Alessandria 103, a Casal Maggiore 71, a Caravaggio 6. Per queste ragioni si conclude non potersi prohibire l'habitatione loro nelle terre de Christiani.

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Flora Cassen, University of North Carolina, Chapel Hill

Joseph ha-Kohen, *Sefer Emeq Ha-Bakha*, Karin Almbladh, ed. (Uppsala, 1981), 112.

There was a Jew in Alessandria by the name of Samuel [Simon] ha- Kohen. He offered to go to Spain on behalf of the Jews to plead for his fatherland. . . . [A]fter he arrived in Spain, he conferred with the councilors about the plight of the Jews. He even succeeded in getting all the way into the palace where the King and his highest ministers were. He spoke in the name of the Jews and asked why he planned to deal in this way with his servants who had assisted him and his father in times of trial. He said that they were still ready today to help him with as much and more for the poor and indigent in case this became necessary, and that they could bring witnesses to justify them. But if the king had once decided to expel them, he would then demand, in the name of the Jews, that he first repays them what they could rightfully claim; for this is what justice demanded.

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איש יהודי היה באליסנדריאה שמואל הכהן שמו, וידבנו לבו ללכת בשם היהודים אל ארץ ספרד ולבקש מלפני המלך על עמו ועל מולדתו, ויעש לו המשנה תיור ובטחון לעמוד בחצר המלך, ויסע אל גיינובה וירה הימה ויבא אל ספרד, וידבר באזני הזקנים אשר שם על אודות בני ישראל הנתונים בצרה, ויבא עד ליפני שער המלך ושריו היושבים ראשונה במלכות, וידבר בשם היהודים כי למה יעשה כה לעבדיו אשר עמדו לו ולאביו בשעת הדחק, ועוד היום ידם נטויה להלוות כהנה וכהנה, גם לו גם אל העניים והאביונים ליום המצטרף, וכאשר יתנו עדיהן ויצדקו, ואם יצאה גזרה מלפניו לגרשם, הנה הוא שואל בשם היהודים כי יתן להם מקודם את אשר יש להם לקבל ממנו כי כן הדין נותן, וכאשר ידוע לכל כי מעלתו יכלכל דבריו במשפט, ושאינו כפוי טובה, וייטבו דבריו בעיני המלך ויט אליו חסד, ויכתב אל המשנה כי לא יעשה דבר בעסק היהודים עד יבא דברו אלין שנית.